

Amendment No. 1 to SB2594

Crowe
Signature of Sponsor

AMEND Senate Bill No. 2594*

House Bill No. 2473

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 1, is amended by adding the following as a new part:

68-131-501. Short title.

This part is known and may be cited as the "Toxic-Free Medical Device Act."

68-131-502. Part definitions.

As used in this part:

- (1) "DEHP" means di(2-ethylhexyl) phthalate, CAS No. 117-81-7;
- (2) "Department" means the department of health;
- (3) "Intentionally added" means the deliberate use of a chemical in the formulation of a product if the chemical's continued presence in the product is desired to provide a specific characteristic;
- (4) "Intravenous solution container" means a container used to hold medicine, fluid, or nutrition therapy for intravenous delivery to a patient in a hospital, outpatient facility, or other healthcare facility;
- (5) "Intravenous tubing" means tubing used to administer fluids, medication, or nutrients intravenously to an adult, child, or infant; and
- (6) "Ortho-phthalate" means a class of chemicals that are esters of ortho-phthalic acid.

68-131-503. Prohibitions.

(a) On or after January 1, 2030, a person or entity shall not manufacture, sell, or distribute in this state an intravenous solution container made with intentionally added DEHP.

(b) On or after January 1, 2035, a person or entity shall not manufacture, sell, or distribute in this state intravenous tubing made with intentionally added DEHP.

(c) To comply with this part, a person or entity shall not replace DEHP in a medical device with another ortho-phthalate.

(d) A product does not violate this part if DEHP is present only as an unintentional contaminant in a quantity that is less than one-tenth of one percent (0.1%) weight by weight.

(e) A person or entity does not violate subsection (a) before January 1, 2032, if:

(1) The person or entity is unable to comply with subsection (a) by

January 1, 2030, because:

(A) Approval by the United States food and drug administration for the DEHP-free intravenous solution container is pending; or

(B) The person or entity lacks adequate equipment to manufacture the DEHP-free intravenous solution container;

(2) No later than October 1, 2026, the person or entity notified customers in this state that the person or entity commenced development of the DEHP-free intravenous solution container to comply with subsection (a); and

(3) No later than January 1, 2028, the person or entity:

(A) Notified customers in this state that such person or entity will not meet the deadline in subsection (a); and

(B) Posted the notice required by subdivision (e)(3)(A) on the person's or entity's official internet website.

68-131-504. Exemptions.

This part does not apply to:

- (1) Human blood collection and storage bags; or
- (2) Apheresis and cell therapy blood kits and bags, including integral tubing.

68-131-505. Rulemaking authority.

(a) The department may promulgate rules to implement and enforce this part in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

(b) Rules promulgated under this part may:

(1) Establish procedures for manufacturers to certify compliance with this part;

(2) Define technical standards for testing medical devices for the presence of DEHP or another ortho-phthalate;

(3) Establish a process for manufacturers to apply for a temporary hardship extension of a compliance deadline if a manufacturer demonstrates that a DEHP-free alternative is not commercially available or would compromise patient safety; and

(4) Establish administrative penalties for violations of this part.

(c) Before the initial filing of rules under this section, the department shall consult with the Tennessee Hospital Association and representatives of the medical device manufacturing industry.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. For purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.